# Exempt Status Determination Quick Reference

## Hourly Computer Employee Exemption (CE)

Employees qualifying for the computer exemption HOURLY must be paid **straight time** for **ALL hours worked** including those which otherwise would have been overtime.

### CE Qualification Requirements

- ❑ **Pay rate** (not including bonus or per diem)
  - ➢ **California: $58.85** or higher (Salaried basis **$122,573.13**)
  - ➢ **Colorado: $34.85** or higher
  - ➢ **Washington: $59.96** or higher
  - ➢ **All other states**: $**27.63** or higher
- ❑ **Primary duties** of the position include **one or more** of the following:
  - ➢ **Application of systems analysis techniques and procedures**, including consultation with users to determine hardware, software or system functional specs;
  - ➢ **Design, development, documentation, analysis, creation, testing or modification** of computer systems or programs;
  - ➢ **Design documentation, testing, creation or modification** of computer programs related to machine operating systems; or
  - ➢ A combination of the duties above, the performance of which requires the same level of skills.

### State Restrictions

CE / Hourly is **not allowed** in the following states:

- Connecticut
- District Of Columbia
- Maine
- Michigan
- Minnesota
- Nevada
- New Mexico
- Pennsylvania
- Vermont
- Wyoming

## Executive, Administrative and/or Professional Employee Exemption (EAP) / Salaried

Employees qualifying for the EAP exemption must be paid a **predetermined WEEKLY (not daily) salary**. The salary may not be reduced or offset based on the number of days or hours worked. They do not receive additional pay for overtime hours worked.

### EAP Qualification Requirements

- ❑ **Guaranteed weekly salary** (not including bonus or per diem)
  - ➢ **Federal** – Annual $35,568 / Weekly $684
  - ➢ **Alaska** – Annual $54,080 / Weekly $1,040
  - ➢ **California** – Annual $70,304 / Weekly $1,352
  - ➢ **Colorado** – Annual $57,784 / Weekly $1,111.23
  - ➢ **Maine** – Annual $45,300.32 / Weekly $871.16
  - ➢ **New York City and Nassau, Suffolk and Westchester Counties** Annual $66,300 / Weekly $1,275
  - ➢ **Rest of New York** – Annual $62,353.20 / Weekly $1,199.10
  - ➢ **Washington** – Annual $80,168.40 / Weekly $1,541.70

### ❑ Job Duties

Executive Exempt

- ➢ Primary duty must be **managing** the enterprise, or **managing** a customarily recognized department;
- ➢ Must **regularly direct** the work of at least 2 or more other full-time employees; AND
- ➢ Have the **authority to hire or fire** other employees or make recommendations that are given particular weight in this regard.

Administrative Exempt

- ➢ Primary duty must be the performance of **office or non-manual work directly related to the management or general business operations** of the employer; AND
- ➢ Primary duty includes **exercise of discretion and independent judgment** with respect to **matters of significance**.

Professional Exempt

- ➢ Primary duty must be the performance of **work requiring advanced knowledge, predominantly intellectual** in character and includes work requiring **consistent exercise**
- ➢ Advanced knowledge must be in a field of **science or learning**; AND
- ➢ Advanced knowledge must be customarily acquired by a **prolonged course of specialized intellectual instruction**.

**If you have questions or need help making an exemption determination, please contact Chantrice Venecia, HR Compliance**

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